

Session and Chapter.	Short Title.	Extent of Amendment.
7 Edw. 7. c. 51— <i>cont.</i>	The Sheriff Courts (Scotland) Act, 1907— <i>cont.</i>	The [state party appealing] appeals to the Division of the Court of Session upon the ground [here state the grounds conform to section 31 of the Act]. (a) That in the interlocutor complained of the verdict was erroneously applied. (b) That the verdict of the jury was contrary to evidence in respect [here set forth clearly and succinctly the particulars in which it is alleged the evidence led and the verdict returned are inconsistent]. (c) That evidence was unduly admitted [or rejected] in regard to [here set forth shortly the fact in regard to which the evidence was admitted or rejected]. (d) That the sheriff misdirected the jury in regard to [here state shortly the point of law alleged to be mis-direction]. (e) That the damages awarded by the jury were excessive. M.P., pursuer [or other party]. or X.Y. [signature and business address], Agent for the

CHAPTER 29.

An Act to amend Section One of the Railway and Canal Traffic Act, 1894, with respect to increases of rates or charges made for the purpose of meeting a rise in the cost of working a railway due to improved labour conditions.
[7th March 1913.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) Where on a complaint with respect to any increase (within any limit fixed by an Act of Parliament, or by a Provisional Order confirmed by an Act of Parliament) of any rate

Increased expenditure due to cost of improved labour

conditions to
be treated as
a valid justifi-
cation of in-
creased rates.
57 & 58 Vict.
c. 54.

or charge under section one of the Railway and Canal Traffic Act, 1894, the railway company proves to the satisfaction of the Railway and Canal Commissioners—

- (a) that there has been a rise in the cost of working the railway, excluding the cost of carrying and dealing with passengers, resulting from improvements made by the company since the nineteenth day of August nineteen hundred and eleven in the conditions of employment of their labour or clerical staff; and
- (b) that the whole of the particular increase of rate or charge of which complaint is made is part of an increase of rates or charges made for the purpose of meeting the said rise in the cost of working; and
- (c) that the increase of rates or charges made for the purpose of meeting the said rise in the cost of working is not, in the whole, greater than is reasonably required for the purpose; and
- (d) that the proportion of the increase of rates or charges allocated to the particular traffic with respect to which the complaint is made is not unreasonable;

the Commissioners shall treat the increase of rate or charge as justified: Provided that nothing in this section shall be construed as preventing the Commissioners from taking into account any circumstances which are relevant to the determination whether an increase of rates or charges is or is not greater than is reasonably required for the purpose of meeting the said rise in the cost of working.

(2) Where it appears to the Commissioners that the increase of the rate or charge of which complaint is made should for the time being be treated as justified in pursuance of this Act, but that an opportunity should be given after a limited time for re-considering the increase, they may, in making an order declaring the increase to be justified, add to their order a provision that the question may, after a period to be fixed by the Commissioners, be re-opened in accordance with the conditions (if any) made by the order.

(3) Where any such order is made, a complaint may be made as to the increase of the rate or charge under the Railway and Canal Traffic Act, 1894, in accordance with the order of the Commissioners, notwithstanding that the matter has already been determined by the Commissioners.

Application of
Act.

2. This Act shall not apply to Ireland.

Short title.

3. This Act may be cited as the Railway and Canal Traffic Act, 1913, and shall be read with the Railway and Canal Traffic Acts, 1873 to 1894.